

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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DAQUAN MILLER,

Plaintiff

SUMMONS

-against-

THE CITY OF NEW YORK, NYPD OFFICER MICHAEL
HEINZ, DET. ROSALIND JAMIE, INDIVIDUALLY AND
IN THEIR OFFICIAL CAPACITY

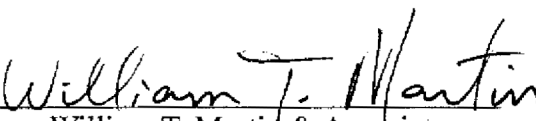
DEFENDANT(S).

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To the above named Defendant (s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Westchester, New York
July 9, 2021

Respectfully submitted,



William T. Martin & Associates
Attorney for Plaintiff DAQUAN MILLER
108 Village Sq., Ste. 143
Somers, New York 10589
(914) 960-3288

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX-----X
Daquan Miller

Plaintiff (s)

-against-

COMPLAINTTHE CITY OF NEW YORK, NYPD OFFICER MICHAEL HEINZ,
DET. ROSALIND JAIME, INDIVIDUALLY AND IN THEIR
OFFICIAL CAPACITY,**JURY DEMAND**Defendants,
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Plaintiff Daquan Miller, by and through his attorney, WILLIAM T. MARTIN, Esq.,
complaining of the defendants herein, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the United States Constitution, and the laws of the State of New York.
2. Plaintiff Daquan Miller's an African- American male, resident and citizen of City of New York, State of New York and the United States of America.
3. Plaintiff is a United States citizen who was deprived of his constitutional and common law rights when defendant(s) THE CITY OF NEW YORK, NYPD OFFICER MICHAEL HEINZ, DET. ROSALIND JAIME, INDIVIDUALLY AND IN THEIR OFFICIAL CAPACITY, falsely accused plaintiff (s) of crimes and that he was falsely identified him as a perpetrator of a shooting and the defendants falsely arrested the plaintiff and did by doing so inflict psychological and emotional injuries and causing plaintiff(s) to lose his liberty by lodging false charges; failure to investigate and pursuing a malicious prosecution of the plaintiff, which resulted in his acquittal of all charges.
4. Plaintiff was acquitted of all charges on December 11, 2018.

PARTIES

5. Plaintiff, Daquan Miller, (hereinafter "MILLER ") is a resident of the City and State of New York.

6. At all times relevant herein, individual defendant(s) NYPD OFFICER MICHAEL HEINZ NYPD, WAS AN NYPD employee (hereinafter "HEINZ") and at all times relevant herein, he was acting in the capacity of agent, servant and employee of the defendant City of New York and is being sued in his individual and official capacity.

7. At all times relevant herein, individual defendant(s) NYPD DET. ROSALIND JAIME was an NYPD employee (hereinafter "JAMIE") and at all times relevant herein, was acting in the capacity of agent, servant and employee of the defendant City of New York and is being sued in his individual and official capacity.

8. At all times relevant herein, individual defendant(s) NYPD POLICE OFFICERS JOHN DOE # 1 - 5 were always NYPD employees and relevant herein, they were acting in the capacity of agents, servants and employees of the defendant City of New York and are being sued in their individual and official capacity.

9. Defendant CITY is a municipality created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department for the public good and it is an agency thereof and in part acts as its agent, in the area of law enforcement and enforcing New York state and Federal criminal laws and various other rules, and regulations promulgated for law enforcement of the government(s) of the city and state of New York and U.S. federal governments.

JURISDICTION

10. At all times material to the averments in the complaint all of the actions complained of herein occurred in the County of the Bronx, in the City and State of New York.

STATEMENT OF FACTS

11. On or about June 6, 2016 between 1 and 2 p.m. the plaintiff was driving home from the 43 Pct. where he had gone to report the vandalism of his vehicle. The police told him he had to return to the location of the vandalism and make the report from that location.

12. Upon departing the precinct and returning home he was followed by persons in another vehicle a black SUV traveling behind him, and for reasons unknown to him, started shooting at this vehicle.

13. While the plaintiff was driving away from his pursuers, in an attempt to avoid being shot, there came a time that his vehicle came to a stop, when it mounted/struck the curb. At or about that same time, NYPD officers, who happened to be in the area observed the interaction, in part, between the plaintiff and the persons in the black SUV.

14. The defendants, HEINZ and JAMIE were on duty when they observed the plaintiff's vehicle strike the curb while it was being pursued by a black SUV.

15. At or about the time the officers responded to where the vehicles had come to rest the occupants of the car approached these officers and informed them that the plaintiff had a gun and had been shooting at them.

16. Defendant HEINZ knew one of the occupants from the "black SUV" as a person of interest from "MONROE" projects who he knew to have had past encounters. HEINZ and JAMIE proceeded to arrest the plaintiff.

17. Plaintiff informed the defendants HEINZ and JAMIE that the occupants of the SUV had been shooting at his vehicle and he was able to direct the defendants' attention to the bullet holes in his vehicle.

18. The defendants took the word of a person known to the police as "a person of interest", and failed to conduct an investigation, failed to take simple scientific test to determine

whether the “accusers” or anyone else had gunshot residue on their clothes or person.

**FIRST CAUSE OF ACTION
MALICIOUS PROSECUTION**

19. Plaintiff MILLER repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked “1” through “18” with the same force and effect as if more fully set forth at length herein.

20. That the individual defendants HEINZ and JAMIE, NYPD POLICE OFFICERS JOHN DOE # 1 - 5, brought charges against plaintiff MILLER that were false, which they knew or should have known to be false through the exercise of due diligence, and a thorough investigation consistent with their duties.

21. That plaintiff MILLER faced prosecution and the threat of incarceration on said false allegations, which were lodged by these individual defendants; when they knew or should have known that those charges were false; and based on the false statements of “individual” defendants HEINZ knew personally. Neither he nor JAMIE, enlisted the forensic services of the crime scene unit, nor did they perform a “GSW” residue test at the scene.

22. That the charges and prosecution of plaintiff MILLER was reckless, wanton, and malicious without any regard to the truth of the allegations, and/or the defendants’ conduct was in clear derogation of the plaintiff’s rights.

23. The defendants knew that their charges were false, that MILLER was being framed and it was clear that he was incapable of firing shots into his own vehicle while he was driving away from the “black SUV”.

24. That as a proximate result of the aforesaid acts and omissions by the defendants, the plaintiff MILLER has prosecuted, and acquitted by a jury and was made to suffer emotional

upsetment, irritation and diverse psychological damages.

25. That by reason of the forgoing, plaintiff MILLER suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

SECOND CAUSE OF ACTION
INFLICTION OF EMOTIONAL DISTRESS

26. Plaintiff MILLER repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "24" with the same force and effect as if more fully set forth at length herein.

27. That the defendants knew or should have known that they were filing false charges which were designed to inflict severe emotional distress and psychological damages to the plaintiffs who were aware of their innocence.

28. That the acts of the defendant caused emotional damage and suffering, anxiety, nervousness, insomnia, and public humiliation.

29. That the defendants knew or should have known that their actions were likely to cause upsetment and depression, and countless hours of anguish which were designed to cause emotional damage and injury to the plaintiff.

30. That the plaintiff a crime victim, was mistreated, humiliated and his report of the incident was disregarded, for no apparent reason, and he was arrested on allegations which were easily refutable.

31. The declination to verify the plaintiff's allegations resulted in mental anguish, incarceration, prosecution and ultimately an acquittal of all charges, which did not incur until after an arduous emotional journey from the night of the arrest until the jury's verdict in a court of law.

32. That by reason of the forgoing, plaintiff MILLER suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

THIRD CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

33. Plaintiff MILLER repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "32" with the same force and effect as if more fully set forth at length herein.

34. That the defendants HEINZ and JAMIE, NYPD POLICE OFFICERS JOHN DOE # 1 - 5, CITY and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the HEINZ, JAMIE, P.O. JOHN DOE DEFENDANTS # 1 - 5, who were unfit for the performance of police duties on June 6, 2016 and who also prepared and filed false accusatory documents to cover their illegal conduct at the above mentioned location.

35. The failure of the defendant defendants HEINZ and JAMIE, NYPD POLICE OFFICERS JOHN DOE # 1 - 5, CITY and N.Y.P.D to hire, retain, train, supervise, discipline, discharge or in any other way adequately control the behavior of the individual police officer defendants in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of N.Y.P.D is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of guidance and direction which prudent and reasonable individuals would display in employing persons to work for the N.Y.P.D.

36. Further defendants HEINZ, JAMIE, and NYPD POLICE OFFICERS JOHN DOE # 1 - 5, defendant CITY countenance, condone, ratify and continue the employment of the HEINZ, JAMIE, and NYPD POLICE OFFICERS *JOHN DOE DEFENDANTS* # 1 - 5, even though they are/were made aware of the ultra-various acts of said defendant police officers and such forbearance, without consequences, fosters an atmosphere of lawlessness and implicit acceptance of falsifying accounts of criminality against the citizenry with impunity.

37. Such conduct has been allowed to exist and has created a culture of lawlessness that

is carried out willfully, wantonly, maliciously and with reckless disregard for the rights of minorities in general and plaintiff MILLER's constitutional rights, specifically.

38. That by reason of the forgoing, plaintiff suffered economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

FIFTH CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK

39. Plaintiff MILLER repeats, reiterates and re-allege each and every allegation contained in paragraphs marked "1" through "38" with the same force and effect as if more fully set forth at length herein.

40. That as an employer of the defendants HEINZ, JAMIE, and NYPD POLICE OFFICERS JOHN DOE # 1 - 5 at the times of their intentional conduct, as set forth herein, the defendant CITY is liable to the plaintiff MILLER under the laws of the defendant CITY and State of New York, for allowing said individual defendants to, while under color of law, deny the plaintiff due process and equal protection of the law, while active members of the NYPD, who arbitrarily and capriciously disregarded the allegations of a plaintiff/victim and failed to properly and thoroughly investigate the plaintiff's allegations against his assailants.

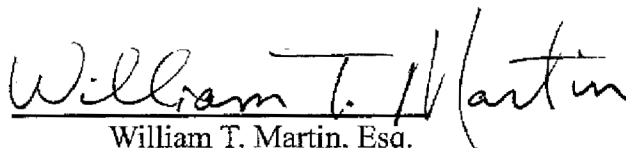
41. That as a proximate result of the aforesaid acts and omissions by the defendants HEINZ, JAMIE, and NYPD POLICE OFFICERS JOHN DOE # 1 - 5; the plaintiff MILLER has been made to suffer general, pecuniary and compensatory damages.

42. That by reason of the forgoing, plaintiff MILLER suffered serious economical and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

WHEREFORE, Plaintiff MILLER request judgment against the individual defendants the defendants HEINZ and JAMIE, NYPD POLICE OFFICERS JOHN DOE # 1 - 5, and defendant CITY, as follows:

1. As against the individual defendants the defendants HEINZ and JAMIE, NYPD POLICE OFFICERS JOHN DOE # 1 - 5 JOINTLY AND SEVERALLY General and Compensatory damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the causes of action herein,
2. As against the individual Defendants the defendants the defendants HEINZ and JAMIE, NYPD POLICE OFFICERS JOHN DOE # 1 - 5 JOINTLY AND SEVERALLY punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the causes of action herein, and;
3. As against Defendant CITY OF NEW YORK, General and Compensatory damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the Sixth Cause of action asserted against it, and
4. Cost of this action,
5. And such other and further relief as may deem to be just and proper.

Dated: Westchester, New York
July 9, 2022



William T. Martin, Esq.
108 Village Sq., Ste. 143
Somers, N.Y. 10589
(914) 960-3288

VERIFICATION

STATE OF NEW YORK

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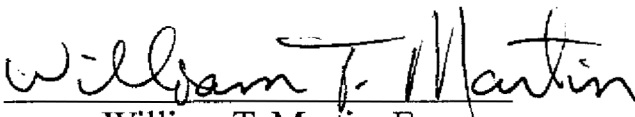
: ss.:

COUNTY OF WESTCHESTER :

I, William T. Martin, Esq. being an attorney do hereby affirm and state under the penalties of perjury that:

I am verifying the contents of the instant Amended Complaint due to the fact, that my client does not reside in the county where I maintain my offices.

I have read the foregoing complaint and know the contents to be true. The averments therein are true to the best of my knowledge, except as to the matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.


William T. Martin, Esq.